When you cannot begin as you mean to go on: The challenge open data when using third-party licensed text mining datasets

Isuster, Marcela
marcela.isuster@mcgill.ca
McGill Library, Canada

Rod, Alisa
alisa.rod@mcgill.ca
McGill Library, Canada

Advanced computational and algorithmic modeling methods, once exclusive to traditional sciences, are now widely adopted in digital humanities with text analysis being perhaps one of the most widely used methodologies in the field. This popularity has resulted in the increasing demand for access to text-mining files on the part of researchers. While several databases and repositories of open corpora exist, they do not meet the needs of every research interest and project, as the desired corpora may be under copyright or licensed to a third party. This has led to the emergence of third-party licensed text mining datasets from digital publishers, library databases, and content providers. Scholars can access these datasets through their institutional libraries via platforms like TDM Studio or Gale Scholar Lab, purchase them, or sometimes obtain them for free under library contracts.

Data sharing is a fundamental aspect of open research and open knowledge, fostering transparency, collaboration, and innovation. By making research data freely accessible, scholars can verify results, replicate studies, and build upon existing work, enhancing the overall integrity, reliability, and reproducibility of research. Open data also democratizes access to information, allowing a broader range of researchers, including those from under-resourced institutions, to engage with and contribute to the field. This openness not only accelerates the pace of discovery but also encourages interdisciplinary collaboration, leading to richer, more diverse insights.

Unfortunately, sharing research data has been slow among humanists (Kim / Stanton 2016; Tenopir et al. 2011; Tenopir et al. 2015: Late et al. 2024). Some of the concerns around this topic include the appropriateness of the term “data” to describe the materials used for research and the lack of ownership of the data used (Edmond / Tóth-Czifra 2018) or that the uniqueness of the research objects does not lend itself to replication (Peels / Bouter 2018).

Despite these objections, there are those who believe in the importance and possibility of data sharing and replication in the digital humanities. Peels and Bouter (2018) argue that replication in the humanities is both possible and beneficial, as research in these fields follows a replicable epistemic process. The use of algorithms and digital tools in digital humanities further enhances the potential and desirability for replication. Sharing data and software that support research projects can facilitate replication (Sikk 2020). Furthermore, there are now extrinsic motivations to share research data, as several funding agencies and scholarly journals are either requiring or encouraging data sharing.

But how does data sharing work when working with third-party licensed data? How can researchers make their data open when it is not open to begin with?

Third-party licensed datasets often come with strict legal terms, making it difficult for researchers to share the underlying data. Further complicating this issue is the fact that obligations are rarely clearly stated in the terms of use and vary not only from supplier to supplier but in many cases from publication to publication. This presents a problem for researchers and librarians as they try to reconcile external requirements, open practices, and copyright claims.

This presentation will explore how these challenges can be navigated. Following a real-life case study of a librarian assisting a PhD candidate hoping to share their third-party licensed research data from a variety of vendors, it will begin with an overview of what, if anything, the terms of use of the most popular vendors say about data sharing. It will then explore if and how permissions were obtained in this particular case, including some of the challenges encountered during this process. Finally, it will share strategies and tips for researchers hoping to share their research data when using third-party licensed datasets.

Bibliography

Edmond, Jennifer / Tóth-Czifra, Erzsébet (2018): *Open Data for Humanists, A Pragmatic Guide* . < https://zenodo.org/records/2657248 > [14.11.2024].

Kim, Youngseek / Stanton, Jeffrey. M. (2016): “Institutional and individual factors affecting scientists' data-sharing behaviors: A multilevel analysis”, in: *Journal of the Association for Information Science and Technology* , 67, 4: 776–99. DOI: 10.1002/asi.23424.

Late, Elina / Skov, Mette / Kumpulainen Sanna (2024): “To share or not to share? Image data sharing in the social sciences and humanities”, in: *Information Research an International Electronic Journal* 29, 2, 9: 386-400. DOI: 10.47989/ir292834.

Peels, Rik / Bouter, Lex (2018): “The possibility and desirability of replication in the humanities:, in: *Palgrave Communications* 4, 1: 1–4. DOI: 10.1057/s41599-018-0149-x.

Sikk, Kaarel (2020): “Towards reproducible science in the digital humanities”, in: Digital History & Hermeneutics. < https://dhh.uni.lu/2020/05/19/towards-reproducible-science-in-the-digital-humanities-how-to-publish-your-data-and-code-alongside-your-research-with-the-help-of-zenodo/ > [14.11.2024].

Tenopir, Carol / Allard, Suzi / Douglass, Kimberly / Aydinoglu, Arsev Umur / Wu, Lei / Read, Eleanor / Manoff, Maribeth / Frame, Mike (2011): “Data sharing by scientists: practices and perceptions”, in: *PLoS One* 6, 6: 1-21. DOI: 10.1371/journal.pone.0021101.

Tenopir, Carol / Dalton, Elizabeth D. / Allard, Suzie / Frame, Mike / Pjesivac, I vanka / Birch, Ben / Pollock, Danielle / Dorsett, Kristina (2015): “Changes in data sharing and data reuse practices and perceptions among scientists worldwide”, in: *PLoS One* 10, 8: 1-24. DOI: 10.1371/journal.pone.0134826.